

THE DELINQUENT

Vol. IV, No. 2

February, 1914

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DELINQUENT (VOL. IV, NO. 2), FEBRUARY, 1914 ***

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VOLUME IV, No. 2.

FEBRUARY, 1914

THE DELINQUENT

(FORMERLY THE REVIEW)

A MONTHLY PERIODICAL, PUBLISHED BY THE
NATIONAL PRISONERS' AID ASSOCIATION

AT 135 EAST 15th STREET, NEW YORK CITY.

THIS COPY TEN CENTS.

ONE DOLLAR A YEAR

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Entered as second-class mail matter at New York.

KATHERINE BEMENT DAVIS

New York City's Commissioner of Correction

BY MARY GARRETT HAYES

[Reprinted from the Jamestown, N. Y., Post]

It is significant of the liberalizing sentiment which is the outgrowth of the sixty years or more of campaigning which the suffragists have carried on in New York State and all over the country, not for the vote alone, but for the recognition of women as co-workers with men in the affairs of the world, that a woman is for the first time in history a member of the cabinet of the Mayor of New York City, and is at the head of one of the most important departments of municipal administration.

Dr. Katherine Bement Davis, the new Commissioner of Correction, is a good suffragist—her family for some generations have been supporters of the cause of women—and she is a firm believer in her sex as well as a splendid monument herself of feminine achievement. The New Year opens most promisingly with such a woman to inspire hope and courage and higher ideals in the wayward of this great city.

Buffalo claims the honor of being the birth place of Dr. Davis, who was the oldest of five children. She was graduated from the Rochester High School, however. Being naturally a student and a thinker, she felt that she must have a broader education. Funds were rather scarce at home and needs many, so the ambitious young girl set to work and taught school until she had earned enough to go to college. She is now one of Vassar's most honored alumnae. Her career there was brief for she completed her course in two years, graduating with flying colors and winning Phi Beta Kappa honors.

The following year Dr. Davis—she was Miss Davis then—spent at Columbia University, studying the chemistry of foods, and the knowledge that she acquired was promptly put into practice in a most telling manner.

John Boyd Thatcher, one of the prime movers in the Committee of Arrangements for the World's Fair in Chicago, was eager to have a woman

establish and manage a workingman's model home. He appealed to Miss Davis, who agreed to take charge of the matter. She built the house and settled a workingman and his family in it. She looked after every detail of the house-keeping herself, did the cooking and fed the family on what she believed to be an ideal diet for their needs, the most healthful and strength-building. They were pledged to eat nothing away from home. Each day the diet was posted for the benefit of visitors. That family was taught scientific house-keeping in such an approved fashion that the model home proved a most instructive and valuable feature of the fair.

Next Miss Davis became the head of the College Settlement in Philadelphia, and was one of the charter members of the Civic Club. It was not long before she was running for membership in the School Board, but at that time Philadelphia had not accepted school suffrage. She was beaten by an Italian saloon-keeper. An amusing fact which gives some idea of how much a woman of her calibre was really needed in that City of Brotherly Love, was that when the vote was counted, it was found that her precinct had polled seven more votes than it was entitled to.

Somewhat later Miss Davis held the first woman's fellowship in the University of Chicago, and there she took her Doctor's degree in political economy. She then went abroad, as European fellow of the New England Association for the Higher Education of Women, and took advanced work in Political Economy and Sociology, in Berlin and Vienna.

Then in January, 1900, Dr. Davis took up her duties as Superintendent of the Bedford Reformatory. Even before the buildings were completed she moved in, started the machinery going and by May, 1901, was ready to welcome and care for wayward girls and women entrusted to her charge to open up to them a new existence of hope and efficiency.

After eight busy years at Bedford, Dr. Davis took a five months' leave of absence, and went to Europe. She spent some time in Sicily and was at Syracuse at the time of the Messina earthquake. Here just as in her own country, she found a real need for her fine broad sympathies and splendid executive ability. The people were overcome by the terrible disaster. They did not know what to do, and there seemed to be nothing to do with. Four thousand refugees had been brought to Syracuse and Dr. Davis promptly took the situation in hand. A woman was found who could speak English,

and with her for an interpreter, Dr. Davis, in what seemed an almost miraculous way, succeeded in getting money, materials for clothing—many of the survivors were literally naked—also other necessities, and meeting the situation most valiantly.

Buildings as well as people she commandeered into service. A little chapel was turned into a dressmaker's establishment and here the women were set to work making clothes. Somewhere else shoe-makers were gathered together, busily making shoes for the bare-footed fugitives. Other men were set to work at road making; one of their constructions is still known as the Davis Road. Red Cross aid arrived and Dr. Davis was made chief dispenser of it. In the first six weeks, she spent \$15,000, but she did not pauperize the people; instead she encouraged them to help themselves, set them to work and paid them off regularly every week. It was that wisely directed, properly compensated work, that saved those poor people and gave them a new grip on life.

All sorts of people needed assistance. The Archbishop of Syracuse gave up his palace for a hospital and a convalescent home was established for those of the upper classes. The men, many of them, were so shaken by the calamity that they would frequently give way to fits of hysterics, and more than once on such an occasion, Dr. Davis took a man by the shoulders and shook him into self-control. At one time a basket, full of rescued babies, was brought in to her—twelve in all—but the bottom one was dead.

For her splendid work at this time, Dr. Davis was much honored. The King of Italy gave her a medal. The Pope of his own accord summoned her to an interview, and gave her his blessing. The Italian Red Cross Society bestowed a medal upon her, as did the American Red Cross, through President Taft.

When the Sicilian earthquake victims were in a position to help themselves, Dr. Davis returned home, and quietly resumed her duties as mother, confidant and friend of the inmates of the Bedford reformatory. She has proved herself to be an all-around friend to those in her charge and has entered heartily into all sorts of activities, in pleasures as well as in work; she has been known to get up plays, drill the actors, paint the scenery, train the orchestra, then go out and receive the guests and make a speech. During

the thirteen years of her service there, she has lost but two days by illness, and that was a sore throat.

The International Prison Congress at its meeting in 1910 elected Dr. Davis the chief of a section. In a space of twenty years, she was the only woman appointed to such a position; she was also the first woman to preside over the public meeting. She was also appointed a member of the Committee which showed the Congress over this country.

Vassar, too, has been delighted to honor this graduate who has lived up so wonderfully to the ideals of her alma mater, and the four thousand alumnae have chosen her as one of the twelve members of the Provisional Alumnae Council.

New York City is indeed fortunate in having at the head of its Department of Correction a woman who has proved herself to be a modern penologist, of the most humanitarian order, and has shown such splendid knowledge of how best to make her sympathy and understanding help the inmates of our prisons; how to individualize the cases and make the punishment fit the criminal rather than the crime; to substitute hope and courage for despair, and to help the unfortunate to amount to something worth while after all.

Surely it is a step forward in civilization, when a woman is chosen to an important position like this commissionership, not because she is a woman, but because it is felt that she is the right person for the place.

CHILD PLAY AND CHILD CRIME

[The following important article, from the New York Times of February 15, brings some of the results of a year's Study of New York juvenile crime, as related to the recreation problem.]

The relation of play to juvenile crime is coming to be more and more recognized by the student of juvenile delinquency and the discerning social worker. But the problem has not been studied intensively. The facts which show how the most celebrated gangster in New York City can get his start playing kick-the-can or baseball in the city streets have only but been regarded in a general way.

For the past year Edward Barrows, special investigator for the People's Institute, has been making a study of the evolution of the crime of children from a purely legal fact to a moral evil, and his report on the year's work represents not only general conclusions but an intensive study of 193 individual cases of juvenile arrest.

Mr. Barrows has lived for about three years in the middle west side of Manhattan, which is popularly called the Hell's Kitchen district. He was not known as a social worker or an investigator, but as a free lance newspaper man and a good fellow generally. He has studied juvenile delinquency in the courts, in the streets and the homes, and has been an actual member of numerous boys' gangs. The hundreds of adults and children with whom Mr. Barrows became intimate are still without an inkling as to his identity. In summing up his report, Mr. Barrows says:

I became aware several years ago that the child life of the New York tenement neighborhoods is a world apart. The middle west side was chosen for investigation, both because it stands high among New York districts for its juvenile crime record, and because it is a relatively old neighborhood, representing the condition toward which the newer congested neighborhoods are developing.

In the middle west side the child life is organized—yes, definitely and somewhat elaborately organized—into what amounts to a defensive

secret league, with tens of thousands of members. This league is made up of small gang units, which are sometimes federated for brief periods, which war on each other, but are united against the common enemy—against the law and its agents, who are aliens, and generally against the adult community as such. This condition means that no investigator who is known as an investigator can find his facts. Still less can an “uplifter” find his facts or do his work if he is known as an “uplifter.”

Twelve thousand children are arrested annually in New York. These are not exceptional children, and they are not a special problem. Rather, they are typical children. They are mere exhibits drawn from the mass of those children who live in the congested neighborhoods, a small proportion of the children who have done the same things and have not been caught.

These children are not sub-normal, and they come from homes which are typical of whole enormous population districts. They are arrested for the only thing a child can do on the street, and they have no place but the street in which to do anything. These children represent the child population of half or more of the tenement districts of New York City.

I made an intensive study of 193 out of the 12,000 arrests for the past year—all of them typical cases. All these arrests fall within the middle west side region. They were made on the following direct charges:

Assault, attempt at burglary, begging, bonfires, burglary, disorderly conduct, destruction of property, fighting, playing football on the streets, gambling, intoxication, jumping on cars, kicking the garbage can, loitering, picking pockets, pitching pennies, playing ball, playing with water pistol, putting out lights, selling papers, playing shinney, shooting craps, snowballing, stealing, subway disturbances, throwing stones, trespass, truancy.

It is clear at the very start that the punishment, as far as the law goes, has little relation to the alleged crimes as listed above. The same section of the Penal Code punishes baseball and burglary, and both of these acts are punishable under several other sections of the Penal Code. Frequently the arrest brings out a series of acts, committed in

previous days or weeks, which bear little relation to the direct cause of the arrest. We find cases of children arrested for playing ball, but whose story in court reveals stealing, assault and burglary. Again, we find a child rearrested under three or four different sections of the Penal Code for the same repeated act, be it the kicking of a garbage can or assault and battery. We find in the court records the most indiscriminate blending of arrest and punishment for innocent play with arrest and punishment for deviltry or perverse crime of a serious nature.

To make the case specific rather than general, a few typical instances may be given:

John C. was arrested for creating a disturbance. This is a nuisance and, from the standpoint of the adult, a moral offense in a crowded city. Special inquiry developed that John C. was one of a number of boys who gathered in front of a tenement home late one evening and sang in chorus. Incidentally only one of the several malefactors was caught.

Charles C. was arrested for violating Penal Code Section 675, relating to disorderly conduct and committing nuisance. His act consisted in throwing a baseball on a public street.

William C., arrested for disorderly conduct, was charged with playing football on the street. The record showed that he was an athletic enthusiast, and there was no other football field but the street. In contrast with this fact, it should be mentioned that the New York Board of Education maintains an elaborate and costly organization for encouraging the athletic spirit among boys.

George C. was arrested for throwing stones. The record showed that George C. had been one of a group engaging in a street fight, the street fight being a typical form of vigorous play among children of this district.

Thomas C. was arrested for throwing stones. He had thrown a stone in revenge and with murderous intent at an unsuspecting enemy. His motive was wholly different from that of George C., but they were classified together in law.

The figures in the Children's Courts are of almost no value as showing the quantity of law-breaking, innocent or otherwise, on the part of the city's children. Nathan A., for instance, was arrested for crap-shooting. There was no other arrest. Similarly with Joseph B., William C. was arrested for playing baseball, and the rest of his team are not mentioned. George C. was arrested for fighting with no mention of his fellow-combatant or combatants.

The acts which lead children to arrest are nearly always games. They are games which are against the law only because they are played on the street, and games which through their nature involve an infraction of the penal code. In the first class we find baseball, football, jackstones, singing, and marbles. In the second we find stealing, fighting, destruction of property, and similar violations of the code of social procedure.

But the point which is overlooked by the law, and in a large measure by the law enforcer, is that both these forms of play are to the child merely or mainly play, representing a perfectly normal childish instinct which has, in many of the cases of arrest, been distorted through a morbid street environment.

The following is an analysis of 170 of the cases here being considered:

Total arrests for moral but illegal play:

Bonfires	19
Disorderly conduct (shouting and harmless disturbances)	13
Football	4
Baseball	22
Snowballing	2
Throwing various missiles	<u>24</u>
Total	84

Total arrests for immoral and illegal play:

Assault	8
Disorderly conduct	6

Burglary	12
Putting out street lights	2
Stealing	42
Throwing various missiles	<u>16</u>
Total	86

The attitude of the law with reference to the innocent class of acts leading to arrest is suggested by the wording of the charges preferred against various children:

Charged with annoying and interfering with others and endangering their safety and property by playing with a hard ball on a public street.

Charged with playing game called baseball on the public street, thereby interfering with free use by persons of that street.

Charged with another ... with playing on the sidewalk of the public street a game called pitching pennies, thereby obstructing the sidewalk and interfering and annoying persons on the public street.

Charged with another boy with obstructing the sidewalk while playing a game called pitching pennies. (Note that while in the previous case the boy was charged with pitching pennies and thereby obstructing the sidewalk, in this case he is charged with obstructing the sidewalk while pitching pennies.)

Charged with playing a game called craps on the public street to the annoyance of persons thereon. (Note that this arrest also was for obstructing the street and not for gambling.)

The law deals with the child from one standpoint only—the annoyance he causes the adult passerby, and the store windows he breaks.

You can see why the moral aspects of the deeds for which children are arrested must generally be hazy to the little wrong-doers themselves. Gambling is a case in point. Public opinion classes gambling as a vice and a crime ranking with theft and sexual immorality. Yet the tenement streets of New York are infested with adult and juvenile gamblers, who gamble usually through shooting crap or pitching pennies. Street gambling is hardly less common than baseball or any of the other street games. The unwritten law of the streets has sanctioned gambling

for many child-generations, until gambling has lost all moral significance to the children of New York. As for the law, we have seen how it adds to the confusion of moral values. The law treats crap shooting as being identical in terms both of punishment and of why the punishment is given, with chalk games, or ring-around-the-rosy, or kick-the-can. The arrests for gambling and for chalk games alike are treated as cases of street obstruction.

But strangely enough, one offense is particularly singled out in law to be prohibited on the streets. This offense is baseball. Baseball is no sin and the children know it. They merely know that they will be arrested if they play baseball. They know that if they are going to play ball they must send out pickets to announce the coming of the policeman.

So much for the innocent group of child offenses. The vicious group includes the many organized games which have been developed by street conditions. They involve acts which the children know to be immoral, but which gang standards allow.

An example of this type of child crime is the widely popular sport of gang stealing. Gang stealing is recognized as a sport and game by unknown thousands of children in New York.

A band of boys, from three to six or seven in number, will go from tenement to tenement on Saturday evenings, taking orders from the housewives for fruits, vegetables, groceries, light hardware and clothing, just as though they were delivery clerks. When they think they have a sufficient number of orders they go out on the street and by a series of organized raids secure the goods which the housewives have ordered.

These goods are sold on a regularly established scale of prices, which in most parts of the city is arbitrary, with no relation to the market value of the stolen articles. After the boys have their money they retire to their "hang-out," where the money is divided into equal parts and the possessors shoot craps until one of them has it all. This boy divides the winnings into two parts, one of which he spends in treating the other members of the gang. The other half he is permitted to keep and spends for himself.

This is a regularly organized form of amusement, which has existed to the writer's personal knowledge for a decade or more on the middle west side. As far as the boys themselves are concerned, it is a game and nothing more. The crimes committed are incidental to the game. The elements the boys are striving for are the dramatic adventure in obtaining stolen goods, the excitement of gambling, which to them is no crime, and the physical joys of the soda water, cigarettes, motion picture shows, etc., which follow the game.

These boys start out to seek adventure, excitement, and a "treat." Unguided and irresponsible, and with a tradition of lawlessness based upon the hostile indifference of their elders, they have gone after their ends without regard to consequences, with the result that before their game is over they will have obtained money under false pretenses, committed larceny, and gambled; for any one of which acts they are criminally liable. Yet punishment for any one of these acts leaves the zest for adventure, the lust of gambling, and the tastes for sweets and cigarettes as strong as ever.

A child is arrested for burglary and is tried on the specific charge of "entering an inhabited dwelling in the night season with intent to commit a felony." Yet this may have been simply an unguided expression of the child's dramatic play instinct. The boys may have organized into a gang of robbers and may, for the game of the thing only, have committed the burglary. Thus there was no criminal intent on the part of the marauders.

Gang fighting, another common and serious offense, is a product of the complex gang organization which is the basis of all boy life in the streets of New York. It has its sources either in gang rivalry or in the infliction of a wrong by one gang upon another, which results in a long series of retaliatory fights, sometimes extending through many months. From being simply physical contests between gang and gang, these fights often become neighborhood feuds in which small boys are maimed and on rare occasions killed outright, windows are broken, and all kinds of neighborhood outrages are perpetrated.

There is a great distinction between these organized gang fights and the smaller misunderstandings which result in fights between two

small boys. Gang fights are a part of the traditional play life of the New York boys. Except among the older boys they are carried out in the spirit of play, and the theft, destruction of property, and mayhem which accompany them are regarded as incidental.

When we trace back to their source even the fights for revenge, we generally find a play motive there also. Two years ago the small boys on West Fiftieth Street and West Fifty-third Street, near Eleventh Avenue, were celebrating election night with bonfires on their respective streets. The Fiftieth Street boys had more material than the Fifty-third Street boys. When the Fifty-third Street boys ran out of material they raided Fiftieth Street, extinguished all the bonfires, routed the celebrants, and triumphantly carried the bonfire material to their own street.

This was the beginning of a feud which lasted over a year between the denizens of the two streets, during which time a score of boys were jailed, a number seriously maimed, and hundreds of dollars' worth of property destroyed. Yet, despite the number of arrests on the charge of fighting, disorderly conduct and destruction of property, the feud itself continued unabated, until a compromise was arrived at by the boy leaders themselves.

This feud was a typical instance of the play spirit expressing itself through rivalry, without any attempt to check it as such. Of the thirty or forty boys who were arrested as a direct outcome of these fights, not one but was arrested as an individual criminal without reference to the motive of his wrong doing. The result was that after his arrest the boy responded to the same motive as promptly as if he had never been arrested. Again we are brought to the serious question of whether or not all this destruction to property and morals could not have been avoided had there been proper facilities and a leadership to have turned the spirit of rivalry into legitimate play channels.

A summary of the record of Mr. Barrow's 193 cases shows that 188 of them, or all but nine, can be traced directly to a play motive, normal or perverted. Of the nine, two were acts of personal revenge and seven showed an economic motive.

According to Mr. Barrows these 193 cases did not include a single one where mental deficiency was the predominant cause. He says:

To conclude, child crime in New York is built on play—wholesome, educational play—which the law treats as crime and which street conditions gradually pervert until innocent play becomes moral crime.

Child crime begins with the attempt to play on streets in violation of law, and in forbidden places under conditions of trespassing. The first arrest is normally a punishment for the attempt to play, and to play in ways which are intrinsically good.

This condition presses on the child life of all the tenement districts of New York City. It is a uniformly operating cause which results in a fairly uniform method of resistance on the part of the children. Not only are the statutory crimes of fighting and stealing regarded as play by the children, but the more innocent kinds of play, like baseball, are in law regarded as crimes and are so punishable.

This is not, on the one hand, a defect of child character, nor on the other hand a mere stupidity of law, but is a real condition, inherent in the fact that the street, with its traffic, and the street front, with its stores and windows, are the only playground of 95 per cent. or more of the city's children.

The result is a fundamental schism between the child community and the adult community. The child community is a nuisance. The adult community is a tyrant. Neither is to blame. Our laws, our court procedure and our probation system, imperfect though they be, are not to blame. The blame rests with the city which has not provided play space and which does not intelligently use even the little play space that is provided. Juvenile crime is a play problem not only in the sense that play is an alternative to crime—a cure for crime: but in a more specific sense, namely, in the streets of New York, under present conditions, play is crime and crime is play.

And play is crime all over New York, not merely in the middle west side. The city's total juvenile crime rate is growing.

What is to be done about it? Provide outlets. Consider specifically that west side district. The remedies are at hand. For instance:

Public school buildings in the middle west side are used to as small an extent of their capacity as is the case in the city at large. This means a 40 per cent. non-use or more.

There is a large recreation pier at West Fiftieth Street, where the activities could be multiplied.

The DeWitt Clinton Park, at Fifty-ninth Street and the North River, is unused during the evenings and very inadequately used during the day. It is one of the finest playgrounds in the world.

There are at least ten city blocks in the middle west side which could if the city government desired it, be devoted to playground uses for at least several hours of every day. Apparatus would not be needed, and the only supervision required would be police supervision.

SHOULD JUDGES GO TO JAIL?

[The idea is not so revolutionary as it might be. Recently Mr. T. M. Osborne tried a week's self-incarceration at Auburn Prison, New York. As a result the general public, reading of his experiences, has a knowledge to-day of the more common methods of prison administration than it would have learned, or have been willing to learn in any other way. Now the Boston (Mass.) Globe comes along with a more radical suggestion, which we herewith summarize.]

“One advocate of the practice of making judges investigate the prisons, an ex-magistrate of New York City, made the assertion that ‘every judge ought to be sentenced to 30 days in jail before he is permitted to send a prisoner there.’

“‘What does an ordinary judge know of prison? What method can he have of judging a proper punishment for an offender, if he does not know what the punishment is like?’ asks this authority.

“The policy of imposing upon judges the obligation of a personal acquaintance with the conditions of the institutions to which they sentence defendants is not to be lightly condemned as impractical or inexpedient. Judges to-day depend primarily for such information as they require upon those whose public duty it is to oversee the prisons, and the courts are also governed by the law in committing prisoners.

“It might be expedient to give judges a wider discretion in disposing of persons convicted of crime, and then require them to make sufficient investigation of every public institution to enable them to use their discretion wisely.

“The average judge is a man of keen perception, and if he has been long on the bench, he has acquired in his experience an accurate conception of the criminal mind, and an idea of how it may be most effectively influenced.

“Doubtless if one of the judges of the Superior Court passed a few days at any one of the penal or corrective institutions of the State, he could see things that had escaped the notice of those who have grown familiar with

conditions, either by association or by brief visits. Some very valuable suggestions for improvement might result.

“We have many investigators who are concerned with the boy and man in confinement. The Board of Parole, a new commission, was created for the purpose of securing to the deserving a conditional release from prison.

“The Executive Council, when passing on the question of pardon, goes carefully into the prisoner’s past, the circumstances of the crime for which he was sentenced, his conduct in prison, and then weighs the chances of his becoming a law-abiding and industrious member of the community if liberated. Few men so released have again offended.

“It is logical that if the body authorized to grant a pardon is so zealous in the interest of the prisoner and the community alike, the judicial authority who fixes the penalty and indicates the institution of punishment in specific instances should be equally well informed of the possible consequences of the sentence to the prisoner. The administration of strict justice might be aided by a more intimate acquaintance with the character of our jails on the part of the judges.”

THE INDETERMINATE SENTENCE AND PAROLE LAW IN INDIANA

AMOS W. BUTLER, SECRETARY BOARD OF STATE CHARITIES

For the crimes of treason and of murder in the first degree, the sentence in this State is either death or life imprisonment. For persons convicted of felony for the third time (habitual criminals) and those found guilty of murder in the second degree or of rape upon a child under ten years of age, the punishment is life imprisonment. All other persons convicted of felony are subject to the provisions of the indeterminate sentence and parole law of 1897 and its amendments. This law applies to men over 16 years of age and women over 17. While it is called "indeterminate," it is in reality limited by the minimum and maximum terms prescribed by statute for specified crimes.

The law is in force in the State Prison at Michigan City, the Reformatory at Jeffersonville and the Woman's Prison at Indianapolis. In the Woman's Prison the parole board includes the superintendent and the physician in addition to the board of trustees; in the State Prison and Reformatory it is made up of the members of the board of trustees only. The parole boards are "prohibited from entertaining any other form of application or petition for the release upon parole or absolute discharge of any prisoner" than the application of the prisoner himself. They may parole prisoners who have served their minimum term and are believed capable of becoming law-abiding citizens. In granting paroles, the boards take into consideration not only the applicant's record as a prisoner, but his ability to maintain himself if free and the sentiment of the community from which he came. The boards are allowed a wide latitude in granting paroles and in withdrawing paroled prisoners from liberty. All their acts are guided by what they believe to be the best welfare both of the prisoner and of society.

Ordinarily paroled prisoners remain under supervision for at least one year. This is an adopted rule and not a requirement of law. They are visited frequently by the parole agents and are required to report regularly. No one

is permitted to leave the institution until a place of employment has been found for him.

Sixteen years' experience shows that out of every 100 prisoners, 57 fulfill their obligations and are discharged from supervision, 26 violate their parole, 2 die, the sentence of 6 expires during the parole period and they are automatically discharged; the remaining 9 are under supervision at a given time, reporting regularly.

The percentage of parole violators varies but little in the three institutions: 765 out of 2,916, or 26.2 per cent. at the State Prison; 1,198 out of 4,670, or 25.6 per cent. at the Reformatory; 61 out of 213, or 28.6 per cent. at the Woman's Prison.

The financial report of the paroled prisoners makes an interesting showing. Their earnings during the time they reported, up to September 30, 1913, amounted to \$2,142,253.31; expenses, \$1,774,672.42; savings, \$367,580.89. In other words, these men and women, instead of costing the State an average of \$172.00 a year each (the average per capita cost of maintenance in the two State prisons and the reformatory for the year 1913), have been released under supervision and have earned their own living and at the time they ceased reporting had on hand or due them savings averaging nearly \$50.00 each. This is not regarded as the most important result of the system, but it certainly is a highly valuable feature.

Taking up the institutions separately, the records show that the State Prison has paroled 2,916 men since the law went into effect, of whom 1,688 have been discharged, the sentence of 134 expired during the parole period, 515 violated their parole and were returned to prison, 250 parole violators are at large, 51 died and 278 are reporting. Their financial reports indicate earnings amounting to \$823,136.69; expenses, \$629,800.69; savings, \$193,336.00.

The Reformatory Reports 4,670 men paroled, of whom 2,666 have been discharged, the sentence of 295 expired during the parole period, 609 violated their parole and were returned to prison, 589 parole violators are at large, 78 died and 433 are reporting. Their financial reports indicate earnings amounting to \$1,315,642.76; expenses, \$1,143,078.54; savings, \$172,564.22.

The Woman's Prison reports 213 women paroled, of whom 105 have been discharged, the sentence of 23 expired during the parole period, 35 violated their parole and were returned to prison, 26 parole violators are at large, 7 died and 17 are reporting. Their financial reports indicate earnings amounting to \$3,473.86; expenses, \$1,793.19; savings, \$1,680.67.

STATE INSTITUTION FARMS IN NEW YORK^[1]

BY H. B. WINTERS, DEPUTY COMMISSIONER OF AGRICULTURE

The State of New York now owns 41 farms. Twenty of these are connected with the charitable institutions, 14 with the State hospitals and 7 with the prisons.

The total area of these farms is 22,981 acres, divided as follows:

Charitable institutions	9,690 acres
State hospitals	10,587 acres
Prisons	2,704 acres

The acreage *per capita* of population, which is a very important item, is as follows:

Charitable farms	.81 acres
Hospital farms	.29 acres
Prison farms	.45 acres

The total farm investment is \$2,331,285.00. The total profits for the year ending September 30, 1912, were \$305,006. The total profits for the year ending September 30, 1910, were \$202,826. This shows a gain of \$102,180 in 1912 over 1910.

The rate of profit made by the farms as a whole, in the year ending September 30, 1912, was 13.1 per cent. The rate of profit made by all the farms for the year ending September 30, 1910, was 9.4 per cent. The greatest rate of profit made by any form increased from 23.2 per cent. to 37.5 per cent. during this period.

The State has 30 profitable farms and 2 farms that are losing money. It should be noted that the 2 farms which were losing money two years ago are now making a profit. One of the farms that lost money last year is a new

place, which is not yet under good headway; the other farm is considering moving to a new location.

These figures are certainly very gratifying and they prove that farming at our institutions is very profitable to the State of New York. This splendid increase shows what interest in farm work has done. It shows that this land is a most valuable investment to the State of New York, both from a financial standpoint and for the general good of the inmates of the institutions.

We read that only forty per cent. of the consumers' dollar goes to the farmer. On institution farms this is not true. Our people are stirred up from one end of the country to the other on account of co-operation. Our institution farm work is the best possible type of co-operation. We hear our farmers complain of overproduction. On the carefully run institution farm this is practically overcome.

Various cold storage laws have been passed to protect our people. If the institution farms produce their own food, the cold storage problem is reduced to its minimum. I am unable to secure in Albany for my own table as good vegetables as I eat at the different institution farms.

While the above may be, and is, gratifying, I cannot resist pointing out to you some of the opportunities that are ahead of us. *We are still buying \$258,711.00 worth of milk per year.* The freight and dealers' profit on this milk is certainly \$50,000. If we should take up all the items purchased by our institutions that could be produced on their own farms, it would total a very large sum.

I believe that a great prison like Auburn should have its own farm, and it should be conveniently located. The quality of food would be greatly improved, and I feel perfectly sure that out of that great body of 1,500 prisoners I could select enough men who could be trusted to do the work on this farm under reasonable supervision. The farm would be an ornament to that part of the country, a profit to the State and of great benefit to the prisoners.

There is a serious problem ahead of us in regard to institutions, or institution sites already purchased, that are not making satisfactory progress. I refer to the State Training School for Boys at Yorktown Heights;

Wingdale Prison Site, Wingdale; Mohansic State Hospital, Yorktown; Letchworth Village, Thiells, and the State Industrial Farm Colony at Stormville. There should be a decided effort to develop these institutions along proper lines. Some of us have heard a great deal against these properties that is not true. It is high time that the different officials interested in these institutions co-operate in order that they may be finished as rapidly as possible.

If any of the above sites are not suitable for institutions, they certainly would make excellent colony farms. By colony farms, I mean a farm that is separated from the main institution by a greater or less distance, a farm where we may send inmates as a reward of merit, where they can live the simple life of a comfortable farmer.

These colonies should be provided with good plumbing, sufficient heat, electric lights and all comforts of up-to-date country life. They are not necessarily expensive, and farms of this sort are found in many cases to be more than self-supporting.

The possibilities in farm work are very large. Two years ago the garden products at the Ward's Island State Hospital for the Insane amounted to \$17,299. The profits were \$9,360. The profit, after deducting 5 per cent. on the investment of \$83,809, was \$5,170.

Then we thought the high water mark was reached, but this year Ward's Island's garden products amount to \$18,867; the profit was \$14,219; the profit, after deducting 5 per cent. on the investment, was \$10,211. Last year Ward's Island made a profit of 17.7 per cent. on land valued at \$1,289 per acre. What Ward's Island is doing can be repeated on many institution farms.

The ideal institution farm in the future will grow its own vegetables and fruit, canning enough for winter use; it will raise its own pork, make its own sausage and smoke its own ham and bacon. It will produce its milk, butter, eggs, poultry, veal and a large part of its beef.

This home production will not only furnish fresher and better food, but will save large amounts of money in freight, cost of handling, and dealers' profits.

Institution farms should be large enough to use improved machinery, properly rotate crops so as to add fertility to the soil, and unlock fertility that is already in the land. These farms will then become more fertile year by year, and therefore more profitable.

FOOTNOTE:

[\[1\]](#) Read at New York State Conference of Charities and Corrections, Buffalo, Nov. 1913.

THE OFFICIAL AND THE PRISONER

(Here is an article from “Good Words,” the prison monthly from the Federal Prison at Atlanta. It gives an anonymous prisoner’s views on a vital subject.)

Inmates of prisons may be regarded as a composite man, for in any collection of human beings, from a family to a nation, there is the larger man, which organizes itself in human form—with head, trunk, limbs, and organs. One group represents the brains, another the physical powers; the stomach is figured by the purveyors of food, and these analogies may be followed indefinitely; they are not fanciful, but actual. He is all here, but is prevented from functioning freely. His reaction against this repression of free action—a repression far more physical than mental—gives unnatural energy to the faculties and tends to lead into certain special channels, such as the falsity of human justice, the overpowering desire to be at liberty; emotions of resentment, resignation, hope, despair, impulses for antagonism or of good-will toward others; moods or irony, cynicism, and even humor; good or evil preoccupation of all kinds. In this way large reservoirs of human force are collected, which can get no relief from expression, and therefore corrode and distort the mind.

But prisoners at that are no different clay from other folks. They are, if anything, different in that they are more sensitive, more sympathetic, more appreciative, and more trustful, once their confidence is gained, than the average person. They love the world and wish it well. The average prisoner—even the “old timer” serving a third or fourth sentence—will advise against a life of crime with all the earnestness and logic he is capable of commanding. But the prisoner, with his good qualities, has his faults—many of them. He is always looking for the best of it, and, from his standpoint, why shouldn’t he get it? He is a convict (the word is not pleasant to hear). It carries a stigma of shame and disgrace. It is lasting. He is declared unfit to live among his people; his movements are restricted; he cannot move or speak without the consent of an official; he is stripped of his citizenship; his home a narrow cell; he is helpless; has lost all—

everything a man values in this world. The prisoner knows this full well. To him the best of it is the worst that the free man can imagine.

This is the body corporate and the proposition the man or men charged with the care, keeping and discipline of prisoners have to contend with. The problems to be solved are difficult, and a gigantic task confronts the warden of any penitentiary. While the power of most wardens is as nearly absolute as mortal power can be, it is necessary, if he is expected to accomplish anything. The demands of his position are great—greater than any other person in the whole community. Upon his say-so depends the hope or despair of the prisoners, but we are convinced that the average warden is anxious for the uplift, and untiring in promoting the welfare of the men under him.

A great honor is due the prison official who voluntarily treats the prisoner with justice and mercy, whose radius of human action is circumscribed only by the book of regulations. Harsh traditional usages are gradually being eliminated and there are but few who now persist in delaying the realization of advanced ideas in the handling of law-breakers. But no intelligent reform of abuses can be effected until they have been authoritatively acknowledged, and the remedies necessary to relieve and cure evils understood. Improvement is slow, and gross anachronisms are found side by side with advanced conditions. Prisoners often distrust their officials when the latter's only fault may be the oath and obligation to obey regulations long out of date. The prisoner sees the better way and, as a rule, will not listen to reason. The official knows it too, but is not free to walk in it. From this condition of affairs comes that great antagonism between the prisoner and the officials which exists in all prisons. The warden to do good must bridge the gulf which separates the prisoner and himself. He must be the example and precept of right. He will not delay action until all difficulties are removed, but is prompt to seize every opportunity as it offers itself. He walks where others creep, and sees the end where others grope. While sedulous to avoid favoritism, he takes into consideration the "personal equation" of each man, and gives him the interpretation of the law best suited to the case as it may be. In his system of discipline, there is as little as possible of the merely mechanical and whatever may be allowable of individual consideration. This is not more human than expedient; for most of the men are quick to perceive the proper means to

deserve good treatment, and, instead of sinking into lethargy and indifference, are aroused to do what in them lies to meet the warden half-way. Frequently, though, regardless of the work of such officials, in this great human body, there are developed ideas unfair, and we will find prisoners who will resist all efforts of the officials in this direction. They do not mean to, but the world has treated them badly, and they cannot help it. Kindness is winning them, though, where cruelty would never affect them.

Punishment and abuse may stir and arouse a man so that he will fight with a desperation born of despair, but more often he sinks into a state of mind, sullen, revengeful and heartless—a condition fatal to reformation, and dangerous to Society. Method, discipline, authority, are fine things and will accomplish much, but with a prisoner you can not force his soul against itself. You must lead him up and out of himself; you can not curse him into a better man. The supreme object of imprisonment should be to inspire the prisoner to do his best when more than his best is needed.

The fight to extirpate the old system is steadily going on, and will eventually succeed. The evils of the contract-labor system are already becoming known, and it will be blotted out of existence, and when that system has become a thing of the past, an immense step in all other features of jail amelioration will have been taken. The next step will involve the entire principle of prison punishments as a deterrent of crime and a means of making better men of prisoners. The State will then not take revenge upon the criminal, will not annihilate his self-respect or crush out whatever manhood he has in him.

PAROLE WORK IN PENNSYLVANIA

BY ALBERT H. VOTAW, SECRETARY, THE PENNSYLVANIA PRISON SOCIETY

In the year 1909, the legislature enacted our first law providing for the indeterminate sentence and for the parole of prisoners at the expiration of their minimum sentence. The minimum sentence was not to exceed one fourth of the maximum, and the privilege of parole was to be granted according to the decision of the board of inspectors who were constituted the board of parole.

In the year 1911, the legislature amended this act because of the objections of several judges in the State who were not ready to endorse the 1909 law. The length of sentence is now at the option of the court. The judges are to impose both a maximum and a minimum sentence with no restriction except the maximum is not to exceed the maximum time now imposed by law for any offence. A sentence may read "Maximum, 25 years; minimum, 24 years"; or "Maximum, 25 years; minimum, one year."

In 1913 the privilege of parole was extended to all confined in the penitentiaries of the State, who were sentenced prior to July, 1911, provided they had served one third of the sentence imposed. Under the operation of this act, several hundred prisoners in the State prisons were entitled to parole provided they could comply with the conditions of the board of parole. These conditions, as a rule, include good behavior while in prison, suitable employment and a sponsor.

Some editors in the State have rather severely criticised what they have termed a general jail delivery. A few of those released have violated the terms of their parole and have been returned to the penitentiary. These instances are widely published, thus creating in the minds of some who are not thoroughly cognizant of all the facts in the case that a lot of desperadoes are being turned loose in the community.

Close observation of the statistics seem to show that about eighty-five to ninety of the paroled men make good. Of those who return the number who have again committed crime is a very small percentage. A man who is out

on parole is liable to be returned for intemperance, idleness or failure to report. If we may estimate the number who have returned as fifteen per cent. of the entire number released on parole, a comparatively small number of this percentage are brought back on account of actual crimes committed. It is too early to decide with reference to the four or five hundred recently paroled. But a comparison with our general experience during the last three years would indicate that not more than two or three out of a hundred will be brought back on account of crime.

Probably the community is not in as much danger from the paroled men as from those who are regularly dismissed after serving their full time. It must not be forgotten that many hundreds of prisoners every year are released from the penitentiaries and from the county jails who have served the full sentence imposed by the court. Whatever their state of mind or of morals, their time is up and they go forth without any restraints such as assist the paroled prisoner to lead a life of rectitude. The prison authorities are often quite well convinced that a prisoner is far from "healed," but there is no recourse. The authorities of a hospital would receive just condemnation if they allowed a patient to be discharged who was uncured of his typhoid fever or of his small pox, but the officers of a penitentiary often turn loose a scoundrel to prey upon the community simply because the time of confinement deemed right by the lawmakers and by the court has expired.

The men who make application for the privilege of parole are carefully studied. That some mistakes have been made is readily admitted. With larger experience these errors may largely be eliminated. The work is a growth and the efficient officers who are giving careful study to the practical workings of the matter are confident of higher results than they have hitherto attained.

A purely economic side of the question was somewhat discussed in a recent report of the Pennsylvania Prison Society. The annual saving at that time by allowing the paroled prisoners to earn their own living instead of being maintained in institutions supported by the State was estimated last year at about \$50,000. The cost of the parole management for the same time did not exceed \$8,000.

There may come a time when the sentence imposed by the court will be wholly indeterminate. The judge may impose a sentence of one year, with

the additional restriction that he is not to be discharged until penological experts shall have pronounced him ready for citizenship.

ENGLISH PRISONS

[Reprinted from Boston Transcript of December 5, 1913]

There has been a steady decline in the prison population in England and Wales in the last ten years. During the year which ended on March 31 last there were fewer commitments in those parts of Great Britain than in any previous year covered by statistical records. According to the deductions made by the editor of The Lancet from the annual reports of the Commissioners of Prisons and Directors of Convict Prisons, this condition of affairs is to be attributed to several causes: The present higher standard of conduct, a more humane tendency in society, general prosperity, and a wider choice of alternative penalties.

“In any moral inquisition,” says the editor, “such as is generally regarded as one of the most important functions of statistical inquiry in the modern state, it is natural that a special degree of interest should attach to the statistics of criminality. These statistics seem at first sight to offer a direct and positive measure of the moral health of the community: and the assumption that they have this significance is in fact so commonly made by popular opinion that any considerable oscillation in their movement is usually interpreted without further question as an index of a corresponding change in public morals.

“In connection with criminality, however, there is even more need than in the case of other social phenomena to bear in mind the proverbial limitations of statistical evidence, especially when drawn from a limited area or when they refer wholly to some single one among the many aspects of this complex question.

“It may be useful to recall these qualifying considerations in judging of the real significance of the remarkable decline in the prison population, to which attention is specially drawn in the latest annual report of the Commissioners of Prisons and Directors of Prisons. From that report it appears that during the year ended March 31, 1913, the number of commitments to prison in England and Wales was lower than in any year of which there is statistical record. Moreover, as the commissioners show by a

comparative table giving the numbers of the prison population over a series of years, this shrinkage is not due to any sudden and exceptional causes operative within the last twelve months, but is, on the contrary, a continuation of a downward movement which has been evident throughout the last decade.

“Obviously, this steady diminution in the number of persons sent to jail is in itself an extremely gratifying fact, and it would, of course, be still more satisfactory if we could infer from it that the moral tone of the community has been improving in anything like the same measure.

“There are, fortunately, good reasons for thinking that in many respects the standard of conduct prevalent nowadays is very probably higher than it was even in the memory of the present generation, and we may perhaps in an indirect way find support for this view in the falling numbers of the prison population, in the sense that this phenomena is doubtless evidence of a humaner tendency in society, of a more careful discrimination in its way of dealing with those who fail to conform to its laws.

“To go further, and to assume that these statistics are proof of a real decrease in delinquency, is, however, a very different matter, and is much more than the evidence will warrant. The statistics of imprisonment, it must be remembered, are peculiarly misleading.

“To a greater extent even than is the case with other statistics of criminality, the oscillations in the numbers of the prison population are affected by fluctuations in economic conditions; for the rise or fall in general prosperity influences not merely the number of offenses committed, but also the proportion of these offenses which will be compensated by the payment of fines. A year, therefore, of booming trade, such as last year was in so conspicuous a degree, will ordinarily be a year in which the forms of illegality that are numerically of most importance, such as crimes of acquisitiveness and parasite offences generally, will be fewest, and in which also the proportion of petty offenders who pay fines will be highest.

“These two influences, both tending in the same direction, have probably been the most important factors in bringing about the decline in imprisonment. But their effect has certainly been helped by another tendency which the student of sociology will note with interest and approval—the tendency, that is to say, to be more sparing than formerly in

the use of this particular mode of punishment. Public opinion has changed considerably within the last few years with regard to the value of imprisonment, more particularly in its application to certain categories of offenders, and in harmony with these newer and better views the law has provided a wider choice of alternative penalties.

“As a consequence, some classes of offenders have already ceased to be sent to jail, and in the case of several other classes imprisonment is merely retained as a violent remedy to be tried only when milder and more appropriate methods have proved unsuccessful. The increasing use of the probation act and the establishment of Juvenile Courts under the children’s act may be specially instanced to illustrate this point; these changes in the law have operated powerfully to decrease the number of commitments to prison. And it may be presumed that if the provisions of the mental deficiency act are used as they ought to be in dealing with weak-minded delinquents and drunkards, there will be a further decrease in the population of our jails, in which these troublesome recidivists have hitherto bulked so largely.

“In the main, then, we may take it that the diminution in the prison population, in so far as it is not accounted for by temporary variations in the economic factors of crime, is due to a changed public opinion which no longer regards the jail as a social panacea. Among the influences which have contributed to bring about this saner attitude, one of the most important has been the clearer perception of what should be the true function of imprisonment, a perception which necessarily leads to closer scrutiny of the conditions that determine the effective performance of that function; and on these points our knowledge has been considerably widened of recent years, thanks to the more scientific spirit which has been introduced into the penal administration of this country.

“The record of Sir Evelyn Ruggles-Brise and his colleagues in this work of reform should therefore entitle them to speak authoritatively regarding the application of this method of treatment which they have done so much to render really corrective and reformatory. And they will certainly demand that the present abuse of imprisonment shall be amended, and that an end shall be made of the futile and pernicious system of repeated short sentences for petty offences.

“How great is the extent of this evil may be gathered from the commissioners’ statement that of the prisoners received from the ordinary courts during last year no less than 121,126 or 80.6 per cent. of the total number committed were sentenced to terms of one month or under. These amazing figures are certainly sufficient proof that there is need of some statutory alteration of the existing laws to prevent the continuance of the useless and mischievous practice; and it is satisfactory to learn from the commissioners that there is a prospect of legislative action on the matter in the near future.”

EVENTS IN BRIEF

[Under this heading will appear each month numerous paragraphs of general interest, relating to the prison field and the treatment of the delinquent.]

A Correction.—The *Delinquent* is convinced that after all there is a “printer’s devil” in every office. For in the January *Delinquent* there appeared directly following our notice of Miss Davis’s well-deserved appointment to the commissionership of correction in New York, a little joke, running about eight lines in length and serving the printer simply as “filler” on the last page. Unfortunately the dash that should have separated the two items was omitted. However, we know that Miss Davis will forgive us, and, after all, we have had to find fault very seldom with our printer, who from the beginning has given us a very low rate and good service.

For a National Prison Commission.—Rev. Samuel G. Smith, of St. Paul, president of the American Prison Association, has announced the members of the committee authorized by the Association at its last annual session in Indianapolis to wait upon President Wilson and Attorney-General McReynolds in an effort to have the Federal Government establish a national prison commission.

The members of the commission are Professor Charles R. Henderson, of the University of Chicago, and United States Commissioner on the International Prison Commission; Frank L. Randall, chairman, Massachusetts Prison Commission; Henry Wolfer, warden of the State Prison at Stillwater, Minn.; W. H. Moyer, warden of the Federal prison at Atlanta, and Joseph P. Byers, secretary of the Association and Commissioner of Charities and Corrections of New Jersey.

The Association in adopting the resolution for the naming of the committee thought that a national prison commission would be of great service to the

Federal and all the State governments. It is part of the scheme to establish a school for the training of prison officials.

Payments to Prisoners.—Dependents of prisoners now serving in the Ohio penitentiary received in January the first payments of money earned by the inmates of the State prison. Under the prison pay system, only those who are employed each day and whose department record is good receive any compensation for their labors. Men occupied at trades are paid the highest.

The prison pay system was installed at the penitentiary in the latter part of September, and under its ruling no prisoner can earn more than \$2.20 each week. The highest amount sent out Thursday by the penitentiary chief clerk amounted to \$30. This sum went to a woman whose husband is serving a long sentence. The woman has three children which she is supporting by being employed as a domestic.

A total of \$774.72 was mailed out from the prison Thursday, and Friday an additional \$867.15 was sent out.

In Oregon four wives whose husbands are serving time on the rockpile, following convictions of non-support of their families, collected \$126.25 from the county for their husband's work during December. The law provides that the county shall allow the wife \$1 and each child up to three 25 cents a day for the convict's labors. During December two wives received an allowance of \$1 a day each, and two received the maximum allowance of \$1.75 a day. Three of those serving the county for non-support and whose families were reimbursed by the county are in for six months and the fourth is serving a year.

The Booher-Hughes Bill in Congress.—"The development of convict road work in practically every State of the union will be the natural outcome of the passage of the Booher-Hughes bill, now pending before Congress," says L. H. Speare, president of the Massachusetts Automobile State Association.

“The bill, which will limit interstate commerce in convict-made goods by subjecting such goods to the laws of the State into which they come, will strike a fatal blow at the contract system. Under this pernicious system great quantities of prison-made goods are annually thrown on the open market, and because of the cheapness of their manufacture are sold at prices far below those at which similar goods manufactured under fair conditions can be sold. A cutting of the selling-price of goods manufactured in free factories and a consequent lowering of the wage paid free workingmen is the consequence.

“Against this unfair competition organized labor has waged unceasing warfare, striving to overcome it by limiting the output of the prisons. Laws requiring the branding of convict-made goods and also a license for their sale have been written on the statute books of New York and a dozen other States. These laws, when tested by the courts, have invariably been held unconstitutional on the ground that they interfered with interstate commerce. The Booher-Hughes bill has therefore been introduced into Congress and is supported by the American Federation of Labor and the national committee on prison labor. This bill is modelled after the Wilson liquor law, which restricts interstate commerce in spirituous liquors, and it is hoped in the event of its passage that the State branding and licensing laws will be possible of enforcement.

“New York City has long been the dumping ground for convict-made goods, and once it is possible to enforce the New York branding laws the profits to be derived from prison contracts will be reduced to a minimum. So great is the contractor’s fear of the effect of such legislation as the Booher-Hughes bill that many contracts contain the proviso that on its passage they shall immediately become null and void.

“The destruction of the contract system would necessitate the building up of other systems for the employment of convicts. In the constructive programme which will be worked out in each of the States, road work, endorsed as it is by the national committee on prison labor and other agencies for prison reform, would play a large part. The passage of the Booher-Hughes convict labor bill is therefore of definite importance to all interested in the movement for placing convicts on the public roads.”

Federal Prison Superintendent Appointed.—Francis H. Duehay, of Washington, has been appointed superintendent of prisons by the Attorney-General, displacing Robert V. La Dow, who has held that post through several administrations during the past eight or ten years. Mr. La Dow becomes assistant superintendent of prisons.

In appointing a new man to this office and displacing Mr. La Dow, Attorney-General McReynolds gave as his reason the desire to have a man of his own selection at the head of prison affairs. He found no fault with the administration of Mr. La Dow, and indicated that his appreciation of his work was shown by the retention of Mr. La Dow's services and experience in the subordinate position.

The Attorney-General has displayed considerable anxiety to bring about better conditions in the administration of prisons. He has made it known that he is working on a plan for adequate inspection and improvement in the parole system. He considers the care of Federal prisoners as one of the important duties placed in his charge, and has expressed his desire that the best conditions possible shall prevail.

The problem of what employment to provide for prisoners is one that is giving the Attorney-General deep concern. With the objection to competition between prison-made goods and the products of free labor in mind, he is weighing the possibilities of providing occupation not subject to such objection. The necessity of finding some employment to fill in the life of the man in prison he appears thoroughly to subscribe to. (Washington Star, Jan. 25.)

The Record of "Camp Hope," Illinois.—In September, 1913, Warden E. M. Allen established a camp at Dixon, Ill., the road workers being State prisoners.

Of the sixty-five men who have been at the camp in the last four or five months, Harry West, who is now clerk of the camp and has ten months yet to serve, said:

“The boys are all on the square yet and there isn’t a man who hasn’t kept his word of honor with the warden given at Joliet before we started for camp.”

The men have worked eight hours every day since they started on road building, except Saturday afternoon, Sundays and holidays. The work accomplished has been highly satisfactory to the local commissioners and the people.

Fifteen of the original party of forty-five men have been released by pardon or otherwise. One convict was returned to Joliet because of his failure to make good.

Another Step in the Honor System.—Warden Tynan, of Colorado, who has been a prominent user of the honor system, plans now a six-acre baseball and athletic field, built for and by convicts, with accommodations for the general public as well as convicts as spectators, to be opened this spring.

“To build up a man mentally and morally,” said Tynan in announcing the innovation, “I know from experience you have to build him up physically.”

The ballplayers and athletes who are to be allowed to use the field are those who cannot be trusted to work in the road gangs, at the prison ranches, or to join the fishing parties the warden allows his honor men.

Permission to use the field must be earned by good conduct, which will be marked by the presentation of an honor button. The button admits the bearer to the field or to the grandstand.

The public will be admitted through one gate and the convict-spectators through another. Provision will be made to prevent breaks for liberty.

After the baseball season closes, a football team will use the field, and a basketball season will follow.

The "Movies" and Portland Prison.—A London (Eng.) dispatch to the Washington (D. C.) Post on January 16 states that the English Government has, in the opinion of most observers, gone to ridiculous lengths in its opposition to certain moving picture films, showing a thrilling escape from Portland prison. "The film has been banned by the Home Office after the board had passed it. The company producing the film, which is called 'Five Hundred Pounds Reward,' has been curtly informed that it must not be shown publicly. The pictures were taken in a private quarry at Portland.

"It is a well-known fact that no convict ever has escaped from Portland, but, in spite of this, the Home Office has threatened to confiscate the entire film, which has cost a good deal to produce, unless the greater portion of it is cut out.

"It is stated at the office of the British board of film censors that all houses, other than government property, in the neighborhood of Portland prison and quarries are to be cleared away, and the wall surrounding the quarries to be raised twenty feet, the authorities being apparently under the impression that the film was taken with the aid of a telephoto lens."

Shackles in Tennessee.—A Nashville newspaper states that, "as a result of revolting conditions said to have been found on the county roads in a tour of inspection, a majority of the members of the workhouse board has declared that use of shackles on prisoners must be abolished.

"According to the statement of one of the members who inspected the camps, the use of shackles on human beings is barbarous, and the suffering and inconvenience caused the prisoners by being forced to wear the irons could only be realized by seeing a prisoner who wore chains which reached from knee to ankle and a cross chain connecting each leg.

"Squire Allen, in speaking of the conditions which he found to be caused from the use of shackles, said that several of the prisoners' legs were almost decayed under the clamps which held the chains. Squire Allen said that especially in the cases of long-term men—those who were sent up for eleven months and twenty-nine days—the wearing of the chains was a horrible thing to think about. He said abolishing the custom of wearing the

irons would be a great reform in the modern method of caring for the county prisoners.

“The shackles are riveted on the legs of the prisoners the day they are received at the camps, and the irons are never removed for any purpose until the day the prisoner is given his liberty. The prisoner is forced to sleep in the chains, it is said, and it is impossible to remove the shackles without the aid of a skillful blacksmith.”

Moyamensing Prison Investigation.—Philadelphia’s old prison is now being investigated. The January grand jury made, among other statements, the following:

“No bond of humane feeling existed between the keepers and the prisoners.

“The closets in the cells are foul-smelling, germ-breeding holes of sickness.

“The old straw mattresses upon which the prisoners sleep are really filled with vermin.

“The conditions of the cells of the untried prisoners are worse than the cells of those serving a sentence.

“He deserves all he gets, let him have it, is apparently the motto at Moyamensing.”

The Missouri State Prison.—“The Missouri penitentiary at Jefferson City is twenty-five years behind the times. It is a source of shame to all Missourians.” That is the substance of a statement on the Missouri penitentiary by Dr. C. A. Ellwood, professor of sociology in the University of Missouri.

Dr. Ellwood says the blame does not rest on individuals so much as the system. For fifteen years he has been working to secure an industrial reformatory for the State. He also thinks the “contract system” is a great force for evil. It makes easier the smuggling of opium, the worst curse of a

prison. Seventy per cent. of the long term prisoners are slaves of the drug, according to a former warden.

Professor Ellwood blames the present and former officials for thinking every attack on the system was a personal attack. They resist and make impossible every effort which is made to ascertain the real state of affairs. This is in contrast with the Kansas officials, where the conditions in the penitentiary are just as bad. There the warden and his helpers are doing all they can to reform the prison system and conditions.

Dr. Ellwood points out that the general knowledge of these conditions has done much to defeat the whole aim of criminal law in Missouri. Judges and juries are inclined to show undue leniency toward accused and convicted persons. They hesitate to send them into such a place.

Yet with this general knowledge, it is hard to arouse the people of the State to action because the institution turns thousands of dollars into the State treasury every year. The only large opposition has come from labor unions. Several years ago a law was passed abolishing the convict labor system. It was never enforced and in the last legislature it was virtually repealed. The authorities were authorized to renew contracts for labor at 75 cents a day for each prisoner.

Thus the system was continued which made it possible to continue the traffic in drugs. Also they continue to punish individuals for crimes for which the system is responsible. With more than a hundred contractors' agents within the walls, it is clearly impossible to stop the smuggling.

The existence of contract labor is not the most serious fault, according to Dr. Ellwood. In the Missouri penitentiary, first offenders and hardened criminals intermingle. No school exists in the prison. Punishment, not reformation, is its dominant note. Several of the cell-houses are antiquated in their arrangements.

A warden once said he never knew a man who was benefited by his confinement there. A penitentiary physician told Dr. Ellwood there was as much dissipation within as outside the walls. The only separation of prisoners is for punishment.

A full and thorough investigation of conditions is the remedy. An industrial reformatory is a necessity. These are the two things which should be done at

once by Missouri, says Prof. Ellwood.

A New Prison for Kansas.—According to the Kansas City Star, the commission to investigate and suggest plans for a new Kansas Penitentiary at Lansing is to go to work at once.

The commission is to visit all of the new prisons in the country and study the plans worked out in those institutions for the humane, sanitary and convenient housing of the prisoners. The State architect is to accompany the commission to gather ideas for the rebuilding.

The first proposition the commission must decide is whether or not it will rebuild the prison on its present site or build on a new site adjacent to the prison walls. If that is done it will be a complete new prison as far as housing conditions are concerned and the present prison will be used entirely as a workshop. If it is decided that the new prison should be built on the present site then the commission must first decide what is the most pressing need and urge the legislature to provide for the most urgent building at once.

Progress in Nebraska.—According to the Lincoln (Neb.) Journal, “one year ago Warden Fenton took up his duties at the Nebraska penitentiary. During the year he has organized the work at the prison in many ways. The honor system has been used among the convicts both in and out of the prison. At some times fifty men have been working in various parts of Lancaster county, unattended by guards and making no effort to escape. Not one prisoner has escaped from the penitentiary itself during the year. Baron von Werner was one man who broke his word to the prison authorities and since he was recaptured at Woodstock, Ill., has been deprived of the privileges which he previously enjoyed. He had been taken to the home of Chaplain Johnson at Tecumseh for a visit and escaped from that town. Warden Fenton is pleased with the spirit of co-operation which exists between the prison officials and the convicts. He says that most of the prisoners are assisting in

maintaining order and that they realize that every effort to help them is being made. The suppression of the dope traffic is one of the reforms which Warden Fenton feels has been the most important act of his administration.”

Commissioner Randall on the Training of Judges.—At the Twentieth Century Club in Boston recently, Commissioner Randall urged that the great law institutions should have special courses in penology. “The law students of to-day become your district attorneys and judges of tomorrow. They should have some knowledge of the science which treats on public punishments in respect to the public and the sufferer.

“Most lawyers,” he added, “know little or nothing of penology. There are 100,000 persons in prison today for felony. More than 12,000 defectives are freed each year who cannot care for themselves. Thus we have an army of defence (meaning soldiers) and an army of offence of about equal numbers.”

A Sad Commentary on Prison Labor.—Pieces of wood from almost every interesting spot in history, and from practically all of the countries of the globe, are contained in a table constructed by John H. Abraham, of Percy, while he was a prisoner in the Western Penitentiary.

The table consists of 25,497 pieces and is 56 inches in diameter. In the center is a star representing King Solomon, from which radiate 1,000 pieces of wood, representing his wives. Six Masonic emblems also surround the center panel; in another panel is an exact copy of the log cabin in which Abraham Lincoln was born, the wood used having been taken from the original cabin in Kentucky. Surrounding the Masonic emblems are 48 stars to represent the number of States in the Union.

A Prison Car for Montreal.—The *Delinquent* has from time to time published accounts of the indignities heaped upon prisoners by public transportation in handcuffs or chains in this country. Some European countries spare prisoners this humiliation, which is no part of a prison sentence.

Now we learn that the Montreal street railway has recently completed for the Province of Quebec a 54-passenger car for transportation of prisoners twice a day between Montreal and the new prison at Bordeaux, 7 miles distant.

According to the Electric Railway Journal the car is divided into two compartments for the purpose of separating convicted from accused persons. The front platform is provided with a cab for the motorman, while the rear platform is arranged as a compartment for the prison officials who may be required to accompany the prisoners. The guard's place is in front of this compartment on a seat which is elevated so as to give him a better view of the prisoners.

The sides of the car are of sheet steel. The windows, of course, are placed above the line of vision. The car is run directly into the prison yard.

The Montreal Tramways Company is the first in America to build a car of this kind. Prison cars have been built by the Great Berlin Street Railway. This method of conveying prisoners is cheaper than the use of the ordinary patrol wagons, and, furthermore, the inmates are saved a great deal of needless humiliation. "The adoption of the trolley-car service by the Montreal penal authorities is in harmony with the many humane features of the Bordeaux institution, which is a splendid example of a modern prison."

What the New Ohio Penitentiary Will Be.—From the Louisville (Ky.) Herald we learn that "the new penitentiary of Ohio is going to be a great 1,600-acre farm, modeled after the Cooley farm at Warrensville, which is used by Cleveland instead of the orthodox workhouses of other cities.

"In this new kind of penitentiary the prisoners will sleep in white iron beds—not in cells!

“They will work outdoors without guard!

“They will go to school to learn the interesting things they have never heard of!

“They will be taught trades so when they leave they can earn an honest living out in the world!

“They will get exercise, medical attention and the best of foods.

“They will get the benefit of all the latest discoveries in scientific penology.”

Good Doctrine.—The New Bedford Standard says that “no amount of kindly sympathy for prisoners can obliterate the truth that in too many instances they are in prison because they would not heed their own moral responsibilities. They are to be pitied, certainly, and helped, of course. But all the pity and all the help will be ineffectual unless it leads up to a practical recognition of the truth that to be truly free, they must strike the blow themselves.”

The Women of the Civic Federation and Prison Reform.—The American Clubwoman comments upon the growing activity of club women in prison reform, a subject in which women always have been especially interested. It says:

“Prison reform is occupying the attention of several large organizations of women. The women’s department of the National Civic Federation, Miss Maude Wetmore, national chairman, will make this one of its most important topics during the coming year. This powerful organization will not only act as a clearing house to classify and prevent duplication of effort, but it will also embrace county almshouses and city jails in the scope of its constructive work.

“At its last biennial meeting the General Federation of Women’s Clubs adopted resolutions protesting against the contract and convict lease system of exploiting the labor of prisoners for the benefit of private contractors. It endorsed the plan of paying the prisoner wages that he might contribute to the support of his family and have a little fund to start life anew when restored to freedom.

“The women of the National Civic Federation also take this advanced stand, but the first prison work that women find at hand is the investigation of actual conditions in penal institutions. If political graft is eliminated from prison management, many reforms may at once be carried into effect.

“Good sanitary conditions should be imperative in every public institution. Already it is found that Federal prisons, being practically free from graft, are the best from a hygienic point of view. County almshouses and jails nearly always reveal ghastly abuses. The reason is not far to seek. The latter class of institutions are at the mercy of the lowest type of political manipulators.

“The moment women begin to investigate, reforms are forthcoming. Already the women of the Civic Federation have immensely improved the deplorable state of the jail of the District of Columbia. An awful condition of affairs had existed there for years, right under the eye of the legislators of the Nation. They simply did not take the trouble to acquaint themselves with the facts. That, as usual, was left for the women to do.

“In a score of States club women have succeeded in improving conditions of prisons and in some cases they have secured the appointment of women on the visiting boards of prisons and reformatories.

“With the intelligent women of the Nation working together we may expect to see great advances in prison management in the next two years.

“This is not sentimentalism. It is good, practical logic. It is literally an economy to reform our prisoners and send them back to freedom as useful citizens.”

The Charge Against the Atlanta Federal Prison.—Grave charges have been, in recent months, brought against the United States Federal Penitentiary at Atlanta by Julian Hawthorne, who was released in October, 1913. The Washington (D. C.) Herald of January 22d, 1914, prints the following:

The report of Dr. A. J. McKelway, special agent of the Department of Justice, who investigated the charges against the administration of the Federal prison at Atlanta gathered by Representative W. Schley Howard, of Georgia, and submitted to Attorney General McReynolds, exonerates Warden Moyer and his subordinates and concludes with the declaration that a satisfactory condition exists at the penitentiary.

As far as the Attorney General is concerned the receipt of the report from Dr. McKelway ends the situation created by the submission of the Howard data. No change in the personnel of the present administration of the affairs of the prison will be made. No change will be ordered immediately in the management of the institution.

Mr. McKelway began his investigation soon after the publication of the charges made by Julian Hawthorne. He was instructed to look into these as well as other charges and statements that had been made from time to time with regard to the prison. He was in the midst of this investigation when the Howard data was submitted to the department. Summaries of the charges included in this data were forwarded to him by the Attorney General with instructions that they be inquired into carefully.

The Attorney General did not think it wise to give publicity to the entire report for the reason that many sections of it contained information which he thought should be withheld in the interest of the efficient administration of the prison.

Dr. McKelway, Mr. McReynolds said, had made an extended series of observations upon the treatment of the prisoners in the penitentiary. He had examined the food served them; had sought to inform himself upon whether they are treated humanely, and whether the guards and prisoners have been subjected to a system of favoritism as had been charged. Efforts had been made to ascertain if the business affairs of

the prison were administered by the authorities conscientiously and honestly.

The investigator finally was convinced that Warden Moyer's administration should be praised instead of blamed. He believes the prison is operated in a manner creditable to the government.

Subsequently Representative Howard expressed himself as satisfied with the results of Dr. McKelway's investigation.

A Deadly Battle at the Oklahoma Penitentiary.—On January 19, seven men were shot to death and three persons wounded when three convicts attempted to escape from the State penitentiary of Oklahoma and were slain by guards.

No general attempt was made by other convicts to join in the delivery, but the three mutineers were encouraged by their less desperate followers who cheered the onslaught of the armed prisoners.

Before the escaping convicts fell, however, they had killed four men, a guard, a deputy warden, the superintendent of the Bertillon department and a visitor, who was formerly a member of Congress and a judge. No more desperate break for liberty has ever occurred in an American place of confinement, says the Washington (D. C.) Star. How the men obtained the weapons with which they were enabled to fight their way to the doors and to brief liberty is a mystery, but obviously they were smuggled to them by friends. All three of these were "bad" men, but only one of them was serving a long sentence. One had two years to serve in all and one five years, the third man having been sentenced for forty years for manslaughter, probably covering the remainder of his life. Doubtless they thought that they could get away, although, of course, the chances were heavily against them. Even if they had distanced their immediate pursuers they would have been trailed without mercy after having taken life so recklessly in their escape.

Such tragedies give pause to the tendency toward a more lenient system of punishments, and may discourage those who believe in paroles and

probations rather than imprisonments. “Men of the type who broke from the McAlester prison seem to be absolutely incorrigible. One of them, he who was serving the shortest term, had a long record of law violations and punishments. Under an habitual criminal’s act he would probably have been sentenced for his last offense to a very long term, but, of course, this would not have altered his disposition. There would still have remained the desire to escape and the willingness to kill if necessary to accomplish that end. The shocking slaughter points plainly to the necessity of a more rigid watchfulness over the desperadoes confined in prison to prevent them from obtaining weapons and using them.”

The St. Louis Republic observes that, “to make the better ways of prison discipline effective a man is needed in whom are combined enthusiasm, sympathy, firmness and knowledge. It happens that the Oklahoma penitentiary at this time is the storm center of a political quarrel, and the real lesson of the riot and murders is not one of reaction, but merely that partisan politics does not lead to the discovery of such men.”

The Responsibility of the Church.—Dr. Frank Moore, superintendent of the New Jersey State Reformatory at Rahway, and a clergyman himself, in an address before the Y. M. C. A. at Atlantic City declared “crime is on the increase in America, and the churches and the ministers are in a large measure to blame because they do not get the boys and the men who are unfortunate before they are gotten by the police and hauled into court and consigned to the reformatories or prisons.” Dr. Moore said that in 1910 statistics showed there were 125 arrests in the United States for every 100,000 of population. In New Jersey alone there were 53,000 arrests for crime, exclusive of 9,700 arrests for drunkenness. In 12 counties in New Jersey there were 44 murders.

Socrates on Missouri Prisons.—Here is something in the St. Louis Post-Dispatch which is trying to reform prison conditions in Missouri:

Socrates: Very well. Now this is enough of that light topic. What about the Missouri prison?

Thrasymachus: We hoped to talk to you about that.

Socrates: Good! It is becoming so easy to get into prison these days that one should have some concern for what may become at any time his own future state.

Glaucou: Certainly.

Socrates: You will recall how unexpectedly Julian Hawthorne got into prison, and how he became interested in prison then for the first time.

Glaucou: Yes.

Socrates: Indeed, none of us has much concern for how other people are treated in prison.

Glaucou: It seems not.

Socrates: The thing to do, then, is always to view a penitentiary in the humane light of what we would ourselves require if we got into it.

Glaucou: Certainly.

Socrates: Very well. Viewing it, then, in the humane light of what we would require for ourselves if we got into it, the average prison is unworthy of our present-day civilization.

Thrasymachus: Absolutely.

Socrates: The Missouri prison is so bad that one must question the advisability of living in Missouri and running the usual risk of prison at all.

Glaucou: Undoubtedly.

Socrates: Probably that is what is the matter with Missouri.

Glaucou: As like as not.

Socrates: Other things being equal, people would rather live in some State where the prison facilities are more up-to-date.

Thrasymachus: Of course they would.

Socrates: Good, Thrasymachus! Now let us get up in the stand and see if we can't help our own courage to do some of the things that ought to be done.

The Construction of a Death House.—The State of Pennsylvania is building, at the new Central Prison at Bellefonte, a separate building for the housing of condemned prisoners and for executions. In view of a movement in a number of States to segregate similarly the condemned men, the following detailed description is timely:

The death house, where is to be placed the first electric chair in Pennsylvania for the execution of criminals since the passage of the law providing for the substitution of electrocution for hanging, is to be a long two-story building, 136 feet in length by 29 feet 4 inches wide. A cellar under the central portion will contain the heating apparatus, and on the first floor will be the gasoline engine for generating the electric current.

But it is on the second story of the severely plain structure of reinforced concrete and of simple Renaissance type that interest centers, for here are the cells for the condemned prisoners, rooms for visitors and the sinister death chamber and post mortem room.

The arrangement is on the corridor plan. To the right, and occupying nearly half the floor space, are the cell room and cells, six of the latter, 7 by 9 feet in size, being arranged in a row at the back of the building facing on a well-lighted room and separated from the rear wall by what is known as a "pipe corridor." At the end of the row is a bath room, and beyond this a room for visitors, opening into the cell room through a gate protected by a grille.

Beyond the visitors' room is a room known as the "Lock," access to which is had from the first floor by means of a curved stairway, and opening into a sort of antechamber to the cell room through a gateway and steel door. It may be said that all of the gates, grilles and metal doors in the building are to be of "tool-proof" steel.

On the other side of the ante-chamber is the apparatus room, where the rheostats and other electrical devices will be placed and where the assistants of the chief electrician will be stationed during executions.

Through a solid wood door, in contradistinction to the steel doors used elsewhere, entrance is given into the death chamber, which will be a spacious room, 26 by 29 feet, lighted by six windows, three on each side, all, of course, heavily barred. The door is near the front wall of the building, and that sinister piece of furniture, the death chair, is close to the door on the right. Behind and to the one side of it is the electrical wall cabinet, at which the electrician stands, watching the signals given by the physician in charge of the electrocution. Running nearly around the other three sides of the room are benches for the witnesses required by law.

The last room on the floor, into which a door opens directly from the electrocution chamber, is the post mortem room, 19 by 26 feet 8 inches in size, and equipped with two operating tables, one of soapstone, the other covered with rubber.

The execution chair will be constructed of solid oak, with a high back, from the top of which the head electrode, or cap, will project. Attached to one of the legs will be a connection for the other electrode which is strapped to the calf of the condemned person's leg. Heavy straps will be attached to appropriate parts of the chair for securing the body, arms and legs of the criminal.

The design and arrangement of the chair and of the electrical apparatus is practically the same as used in all of the States where electrocution is prescribed as the death penalty.

The necessity for the erection of the death house as the first of the group of the new penitentiary buildings is evident when it is remembered that death by hanging is now abolished by law, and that at present no person condemned to death can be executed until the facilities for electrocution have been provided.

The Crucial Period.—A prisoner writes, in “Good Words,” as follows: “There is no other situation incident to mortal life more powerfully conducive to searching and even creative thought than is enforced sojourn in a great prison. This is true of every inmate in his degree; but in all prisons there are a number of prisoners who, in the outer world, had been

accustomed to apply the energy of strong and able intellects to dealing with the problems of external life—chiefly, of course, such are concerned with wresting wealth and position from the world. When these men are suddenly removed from their activities and prevented from further use of their faculties on the lines they have been pursuing, a phenomenon of singular psychological interest takes place. The immense mental energy which the man has hitherto been applying to the management of material things, is suddenly and violently thrown back upon himself, and it generally creates there, at first, a condition of bewilderment and distress. In the majority of cases, however, this chaotic state will be of brief continuance: a reaction occurs, and the man now directs the force which had been used in the ordering and subjugation of concrete matters, to the region of the immaterial—that is, of thought. He begins for the first time—and he has time to spare—to investigate and dissect the causes of things; to determine what are the principles and objects of existence, and of his own part in it; to ask himself what is worth doing, and avoiding, and why; and to measure and weigh the scope and value of his personal abilities and resources. The result of such an investigation must be worth; and the benefit of it might be, and should be imparted to others, instead of remaining shut up in the man’s private breast.”

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There are no bondholders, mortgagees, or other security holders.
O. F. LEWIS, Editor and Business Manager.

Sworn to and subscribed before me this 30th day of September, 1913.

CHARLES D. IMMEN, JR., Notary Public No. 2, New York County.

My Commission expires March 31, 1914.

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The one footnote has been moved to the end of its article and relabeled.

Punctuation has been made consistent.

Variations in spelling and hyphenation were retained as they appear in the original publication, except that obvious typographical errors have been corrected.

*** END OF THE PROJECT GUTENBERG EBOOK THE
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